SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 16

Honorable Vincent I. Parrett, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

March 4, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

(1) The Court by calling **(408) 808-6856**, and

(2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.E.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If by chance for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.scscourt.org/general_info/ra_teams/video_hearings_teams.shtml When using UDC you must *separately register for each case* in which you appear remotely. If perhaps you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	23CV419582	*Virginia Riegos-Rangel, et al.* *v.* *Terry Ray Freeman, et al.*	**Hearing: Compromise of Minor's Claim** Before the Court is a Petition by Virginia Riegos-Rangel, the parent for the minor Claimant Eduardo Antonio Riegos-Rangel, age 11, for two Orders: 1. Order Approving a Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor. 2. Order To Deposit Funds in Blocked Account to protect the interests of the minor Claimant. This Petition is well grounded in the law, well supported by the facts, and reasonable in all respects. The Court finds that all the relief sought is in the best interests of the minor Eduardo Antonio Riegos-Rangel. Accordingly, the Petition is **GRANTED** in all respects. After this hearing, the Court will sign and file the two Proposed Orders that have already been prepared by Petitioner and filed with this Petition. **SO ORDERED.**

9:01 2	23CV419582	*Virginia Riegos-Rangel, et al.* *v.* *Terry Ray Freeman, et al.*	**Hearing on Compromise of Minor's Claim** Before the Court is a Petition by Virginia Riegos-Rangel, the parent for the minor Claimant Valeria Montserrat Del Pilar Riegos-Rangel, age 10, for two Orders: 1. Order Approving a Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor. 2. Order To Deposit Funds in Blocked Account to protect the interests of the minor Claimant. This Petition is well grounded in the law, well supported by the facts, and reasonable in all respects. The Court finds that all the relief sought is in the best interests of the minor Valeria Montserrat Del Pilar Riegos-Rangel. Accordingly, the Petition is **GRANTED** in all respects. After this hearing, the Court will sign and file the two Proposed Orders that have already been prepared by Petitioner and filed with this Petition. **SO ORDERED.**

9:013	23CV427273	*America Naranjo, et al.* *v.* *Abbott Laboratories, et al.*	**Hearing on Verified Application of Aysha Spencer of Kirkland & Ellis LLP to appear *pro hac vice* for Defendant Abbott Laboratories** The Verified Application of Aysha Spencer to appear *pro hac vice* for Defendant Abbott Laboratories is well supported and complies with California Rule of Court 9.40. Accordingly, the Verified Application is **GRANTED** in all respects. After this hearing, the Court will sign and file the Proposed Order that was filed with this Verified Application. **SO ORDERED.**
9:014	24CV454894	*Alejandro Alcocer, Jr.* *v.* *Marla Alcocer, et al.*	**Order on Motion by Plaintiff's Counsel to be Relieved as Counsel for Plaintiff Alejandro Alcocer, Jr.** Plaintiff's counsel Michael C. Crosby of Crosby & Crosby, P.C., moves under Code of Civil Procedure Section 284(2) for an Order to be Relieved as Counsel for Plaintiff Alejandro Alcocer, Jr. As the Motion complies with applicable law and is well supported and duly served, the Motion is hereby GRANTED. After this hearing, the Court will sign and file the Proposed Order that has already been prepared by Plaintiff's counsel and filed with this Motion. **SO ORDERED.**

9:015	25CV463473	*Christina Tamburrino* *v.* *David Tran, et al.*	**Order on Motion by Plaintiff's Counsel to be Relieved as Counsel for Plaintiff Christina Tamburrino** Plaintiff's counsel Vincent D. Howard, Esq., moves under Code of Civil Procedure Section 284(2) for an Order to be Relieved as Counsel for Plaintiff Christina Tamburrino. As the Motion complies with applicable law and is well supported and duly served, the Motion is hereby GRANTED. After this hearing, the Court will sign and file the Proposed Order that has already been prepared by Plaintiff's counsel and filed with this Motion. **SO ORDERED.**
9:001	24CV448974	*Wells Fargo Bank, N.A.* *v.* *Peggy Bagdriwicz*	**Order on Motion for Summary Judgment of Plaintiff Wells Fargo Bank, N.A.** *See* Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:002	24CV445397	*Terry Kwong, et al.* *v.* *Elaine Yang, et al.*	**Order on Cross-Complainant Yang's Motion to Compel Further Discovery Responses and for Sanctions** *See* Line 2 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.

9:00 3	24CV447738	*Heriberto Jara Jurado, et al.* *v.* *Ford Motor Company, et al.*	**Order on Plaintiffs' Motion to Compel Further Responses to Plaintiff's Request for Production of Documents, Set One** *See* Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 4	24CV447738	*Heriberto Jara Jurado, et al.* *v.* *Ford Motor Company, et al.*	**Order on Plaintiffs' Motion to Compel Further Responses to Plaintiff's Form Interrogatories 12.1, 15.1, and 17.1** *See* Line 4 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 5	25CV464528	*Sunita Vora* *v.* *Sunnyvale Gardens Post Acute, et al.*	**Order on Plaintiff's Motion to Compel Further Responses to Requests for Production of Documents, Set One, and for Sanctions** *See* Line 5 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 6	24CV439631	*Miriam Ben Abdallah, M.D.* *v.* *Stephen W. Fackler, et al.*	**Order on Plaintiff's Motion to Compel Further Discovery Responses and for Sanctions** *See* Line 6 below for complete tentative ruling for both Plaintiff's Motion to Compel and Defendants' Motion for Relief regarding the same discovery requests and responses by Ms. Gupta. After the hearing, the Court will prepare and file one formal order addressing both Plaintiff's Motion to Compel and Defendants' Motion for Relief.

9:00 7	24CV439631	*Miriam Ben Abdallah, M.D.* *v.* *Stephen W. Fackler, et al.*	**Order on Defendants' Motion for Relief regarding Discovery Responses** *See* Line **6** below for complete tentative ruling for both Plaintiff's Motion to Compel and Defendants' Motion for Relief regarding the same discovery requests and responses by Ms. Gupta. After the hearing, the Court will prepare and file one formal order addressing both Plaintiff's Motion to Compel and Defendants' Motion for Relief.
9:00 8	23CV413738	*Emerging Growth Staffing, LLC* *v.* *DFO Global Performance Commerce Limited*	**Order on Plaintiff's Motion to Amend the Judgment entered on May 12, 2025** *See* Line 8 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 9	25CV456254	*Lynley Kerr Hogan* *v.* *Rob Moore, et al.*	**Order on Defendants' Motion for Attorneys' Fees and Costs** *See* Line 9 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 10			
9:00 11			
9:00 12			
9:00 13			
9:00 14			

9:00 15			

Line 1

Case Name: *Wells Fargo Bank, N.A. v. Peggy Bagdriwicz*

Case No.: 24CV448974

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") moves for summary judgment in favor of Plaintiff and against Defendant Peggy Bagdriwicz ("Defendant") under Code of Civil Procedure Section 437(c) for the following causes of action: (1) breach of written contract, (2) breach of contract (implied in fact), (3) money lent, (4) money paid, (5) open book account, and (6) account stated. Motion for Summary Judgment at 1:23-28 ("Motion").

The Motion came on for hearing on March 4, 2026, at 9:00 AM in Department 16. The matter having been submitted, after full consideration of the evidence, the separate statements, and authorities submitted by each party, and arguments made by the parties in their papers and the hearing, Court finds and rules as follows.

This is a straightforward collection action for credit card debt. According to the allegations of the Complaint, Defendant Peggy Bagdriwicz ("Defendant") entered into a credit card agreement with plaintiff Wells Fargo Bank, N.A. ("Plaintiff" or "Wells Fargo") on January 13, 2015, and Defendant breached the contract by not paying $20,175.70 owed on the credit card. (See Complaint, ¶¶ BC-1-4.)

On October 7, 2024, Plaintiff filed a Complaint against Defendant, asserting causes of action for breach of contract and breach of implied in fact contract.

Plaintiff now moves for summary judgment.

I. PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT

A. Plaintiff's burden on summary judgment

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact—one sufficient to support the position of the party in question that no more is called for. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-851.) Plaintiff moving for summary judgment bears the burden of persuasion that each element of the cause of action in question has been proved, entitling the party to judgment. (Code Civ. Proc. § 437c, subd.(p)(1).) Plaintiff, who bears the burden of proof at trial by preponderance of evidence, therefore "must present evidence that would require a reasonable trier of fact to find the underlying material fact

more likely than not—otherwise he would not be entitled to judgment as a matter of law, but would have to present his evidence to a trier of fact." (*Aguilar*, *supra*, 25 Cal.4th at p.851.) "'Once the plaintiff . . . has met that burden, the burden shifts to the defendant . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.'" (*Thompson v. Ioane* (2017) 11 Cal.App.5th 1180, 1195 (Sixth District), quoting Code Civ. Proc. § 437c, subd. (p)(1).)

B. Plaintiff Wells Fargo meets its initial burden

"A cause of action for damages for breach of contract is comprised of the following elements: (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff." (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 228 (Sixth District).)

In support of its Motion, Wells Fargo presents the declaration of William H. Haas, Loan Workout Specialist, responsible for monitoring the legal process for credit card accounts, investigation and resolution of customer disputes, research and review of Wells Fargo's business records, including researching specific account issues such as an account being opened, disputes with respects to the account, charges made and payments received and account delinquencies. (See Haas decl. in support of Pl.'s motion for summary judgment ("Haas decl."), ¶¶ 1-4.) Plaintiff also presents documents prepared in the ordinary course of Wells Fargo's business[1] that demonstrates that Defendant applied for and was issued a Wells Fargo credit card account with the customer agreement for the credit card ("Customer Agreement"), which provided that:

> This contract is for your credit card account (Account) and us between Wells Fargo Bank, N.A. and each Account holder.... By using or confirming your Account, you and any joint Account holder accept this Agreement's terms.

---

[1] The Haas declaration attaches the Customer Agreement (see Haas decl., exh. 1) and Wells Fargo Cash Back VISA Signature Card statements from 1/23/2015 to 10/24/24 (see Haas decl., exh. 2). Defendant objects that there is "no internal pagination [and] no specific page references." (Opposition, p.2:20-24.) Considering that there are only two sets of documents—the Customer Agreement and the credit card statements—and the reference to both sets of documents are explained by the separate statement referencing the documents (see, e.g., Pl.'s separate statement of undisputed material facts, no. 3 (stating that "Defendant accepted the terms of the written agreement when they used the Wells Fargo Credit Card," citing the Customer Agreement) or are self-explanatory (see, e.g. Pl.'s separate statement of undisputed material facts, no.13 (stating that "[t]he balance due on Defendant's Subject Account is $20,175.70," citing credit card statements with most recent statement indicating a balance of $20,175.70), the lack of pagination or specific page references is neither confusing nor prejudicial. Accordingly, the Court overrules Defendant's objection and will consider these documents for this Motion.

(Haas decl., ¶¶ 5-11, exh. 1, § 1.)

Defendant used the credit card, thereby accepting the terms of the Customer Agreement, and this account was opened with Wells Fargo on January 13, 2015. (*Id*. at ¶¶ 12-13.) Defendant charged goods and services to the account with Wells Fargo, or authorized others to charge goods and services to the account, was issued monthly billing statements for those charges and purchases, and Defendant made payments of the principal and interest pursuant to the agreement through October 14, 2023. (*Id*. at ¶¶ 14-17, 21, exh. 2.) No further payments were made on the account after October 14, 2023, leaving a balance of $20,157.70 on the subject account. (*Id*. at ¶¶ 22.) Under the Fair Credit Billing Act, California's Song-Beverly Credit Card Act of 1971 and the Billing Rights Summary included with every monthly statement provided to Defendant, Defendant had 60 days to notify Wells Fargo of any disputes on the activity of the account, and there is no record of Defendant reporting any disputes let alone of any unresolved disputes on the account. (*Id*. at ¶¶ 18-20.) Hence, under the plain terms of the Customer Agreement, Defendant owes Wells Fargo the balance of $10,031.21. (*Id*. at ¶ 23.)

So Wells Fargo meets its initial burden to demonstrate that it is entitled to judgment on its Complaint. Accordingly, the burden now shifts to Defendant to show that a triable issue of one or more material facts exists. (See Code Civ. Proc. § 437c, subd. (p)(1).)

C. In Opposition, Defendant fails to demonstrate the existence of a triable issue of material fact.

In Opposition, Defendant objects that "Plaintiff's declarant signed a declaration attesting to 'facts' which he could not possibly have personal knowledge of and which he did not take steps to verify . . . [because] they could only be known by the review of documents, applications, physical card carriers, and computer screens which Plaintiff has chosen not to provide to the court these statements are hearsay and are inadmissible under Evidence Code § 1523. . . . [T]he falsity of the Haas declaration and the absence of any admissible evidence of any communication between the parties at all result in the failure of Plaintiff's motion." (Def.'s opposition to Pl.'s motion for summary judgment ("Opposition"), p.5:1-28, 6:1-21.) But Plaintiff's evidence *are* business records and thus, "not made inadmissible by the hearsay rule." (Evid. Code § 1271.). So Defendant's hearsay objection as to Plaintiff's evidence is overruled and the Court will consider this evidence when resolving this Motion.

In support of her Objections to the Haas declaration, Defendant also argues that "[t]he cited declaration makes no reference to [an] account ending in 7845, nor to any account number. . . . [T]he earliest statements found in the references 439 pages of exhibits, beginning in January 2015, show an account ending in 8651, not 7845 as alleged . . . [and] Plaintiff provides no admissible evidence explaining this discrepancy." (Opposition, p..2:16-20; see also Def.'s Objections to Haas Decl., p.7:13-16.) But the Haas Declaration states that the attached statements are those related to Defendant's account for her credit card. (See Haas decl., ¶¶ 15-17, exh. 2.) This is sufficient for purposes of foundation. Civil Code section 1747.02 defines an "[a]ccepted credit card" as "[a]ny credit card issued in renewal of, or in substitution for, an accepted credit card becomes an

accepted credit card when received by the cardholder, whether the credit card is issued by the same or a successor card issuer." (Civ. Code § 1747.02, subd. (b).) Section 1747.02's definitions of "credit cards" and "accepted credit cards" does not reference accounts or account numbers, but rather notes that the credit card may be substituted or renewed and will nonetheless be considered as an accepted credit card. So Defendant's objection that the Haas declaration is inadmissible for a lack of reference to any particular account number is unpersuasive and overruled.

Defendant also presents the deposition testimony of Jessica Rogers, Loan Workout Manager for Plaintiff. Defendant contends that Haas's declaration is inadmissible because Rogers testified that Haas had never supervised, worked in, or been involved in the training that mails documents, Haas did not personally witness the mailing of the documents, and Haas did not work in the marketing department that has the automatic computer-generated system that reviews accounts and puts the LS WF58 code on accounts. (See Opposition, p.3:9-25.)

But Defendant misunderstands the business records exception to hearsay. The California Supreme Court holds that "[i]t is the object of the business records statutes to eliminate the necessity of calling each witness, and to substitute the record of the transaction or event. It is not necessary that the person making the entry have personal knowledge of the transaction." (*Loper v. Morrison* (1944) 23 Cal.2d 600, 608-609; see also *Jazayeri v. Mao* (2009) 174 Cal.App.4th 301, 322 (stating that "[n]or need the individual with personal knowledge testify; the rule permits any 'qualified witness' to establish to the conditions of admissibility"); see also *Estate of O'Connor* (2017) 16 Cal.App.5th 159, 170 (stating that "[a] trial court has wide discretion in determining whether a qualified witness possesses sufficient personal knowledge of the identity and mode of preparation of documents for purposes of the business records exception. . . . [I]ndeed, 'any 'qualified witness' who is knowledgeable about the documents may lay the foundation for introduction of business records").) "The witness need not have been present at every transaction to establish the business records exception; he or she need only be familiar with the procedures followed. . . ." (*Jazayeri*, *supra*, 174 Cal.App.4th at p.322; *see also Estate of O'Connor*, *supra*, 16 Cal.App.5th at p.170 (stating that "a qualified witness need not be the custodian, the person who created the record, or one with personal knowledge in order for a business record to be admissible under the hearsay exception"); *see also Grail Semiconductor, Inc. v. Mitsubishi Electric & Electronics USA, Inc.* (2014) 225 Cal.App.4th 786, 798 (stating that "the foundational evidence need not be presented by the custodian of the record or the employee who personally prepared it"); *see also People v. Selivanov* (2016) 5 Cal. App. 5th 726, 775 (stating that "[t]he witness called to present this proof 'need not have been present at every transaction to establish the business records exception; he or she need only be familiar with the procedures followed'").) As Haas has sufficient personal knowledge of the identity and mode of preparation of documents for purposes of the business records exception, Defendant's objection is overruled.

Defendant further argues that Rogers "admitted that the manner in which the declarant would know that statements were provided to a consumer as by viewing a computer display within their ECAR system, indicating whether statements were mailed,

or provided via an online banking system, or by a mobile phone application . . . [and t]he referenced 421 pages of exhibits do not contain any image, printout, or other documentation showing this information." (Opposition, pp.3:26-28, 4:1-1-4, citing Rogers depo, pp.67:3-25, 68:1-25, 69:1-25, 70:1.) But this is a misrepresentation of the cited deposition testimony. The cited portion of the Rogers deposition was about the message that Rogers might see if there was usage of the mobile app. (See Rogers depo, pp.68:14-25, 69:1-25, 70:1.) But just before this testimony, Rogers plainly stated that she "did not see anything that indicated 'mobile app,' no." (Rogers depo, p.68:10-13 (responding to question "Was this Defendant using the mobile app at the time?").) The absence of the documentation showing the information regarding usage of the mobile app supports Rogers' statement that Defendant did not use the mobile app. Defendant's argument is without merit and her objections numbers 1 through 11 to the Haas declaration are overruled.

Lastly, Defendant argues that "Plaintiff does not attempt to state that there were no disputes by the consumer. . . . [I]nstead, it artfully claims 'there is no record of any unresolved disputes on the account.'" (Opposition, p.4:5-8, citing Haas decl., ¶ 20.) Here, Haas makes statements in his declaration as Plaintiff's Loan Workout Specialist who has "personal knowledge of the way Plaintiff conducts business and the usage and record keeping systems for Wells Fargo Bank, N.A." (Haas decl., ¶¶ 2-8.) Further, Haas notes that "[p]ursuant to The Fair Credit Billing Act, California's Song-Beverly Credit Card Act of 1971, and the Billing Rights Summary included with every monthly statement provided to the Defendant, Defendant has 60 days in which to notify Wells Fargo Bank, N.A of any disputes on the activity of the account. . . . [I]f Defendant sends a written notice to Wells Fargo Bank. N.A. to dispute any activity on the account, employees of Wells Fargo Bank. N.A. will then manually review the account, conduct an investigation, and then send a written explanation to the Defendant advising as to what action was taken, if any, on the account." (Haas decl., ¶¶ 18-19.) Thus, with those background facts, paragraph 20's statement that "[t]here is no record of any unresolved disputes on this credit card account" is not an "artful claim" but is rather what Haas can testify to based on his personal knowledge.

And to the extent that Defendant is arguing that there is a triable issue of material fact as to whether "there were no disputes by the consumer," it was incumbent on Defendant to present evidence to that effect. (See *Vournas v. Fidelity Nat. Tit. Ins. Co* (1999) 73 Cal.App.4th 668, 672 (stating that "[a] party cannot avoid summary judgment based on mere speculation and conjecture . . . but instead must produce admissible evidence raising a triable issue of material fact"); see also *Wiz Technology, Inc. v. Coopers & Lybrand LLP* (2003) 106 Cal.App.4th 1, 10 (stating that once the moving party "meets its burden of proof . . . the burden shifts back to the [opposing party] to show, not merely by allegations or denials, but by competent evidence, that a triable issue of one or more material facts exists as to the cause of action"); *see also Kelecheva v. Multivision Cable T.V. Corp*. (1993) 18 Cal.App.4th 521, 529 (stating that "[i]t was incumbent upon [the opposing party] to come forward with some evidence to raise a triable issue of fact"); see also *Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1097 (affirming grant of summary judgment, stating that "[s]ince defendant met his initial burden as the moving party, the burden shifted to the [opposing party] to produce evidence showing a triable issue of

material fact. . . . Specifically, it became incumbent upon the [opposing party] to 'establish, by nonspeculative evidence, some actual causal link between the plaintiff's injury and the defendant's act or omission").) Here, the cited portion of Rogers' deposition testimony (see Opposition, p.4:8-14, citing Rogers depo, pp.60:7-25, 61:1-25, 62:1-25, 63:1-21) does not support any assertion that Defendant disputed any charges, statements or amounts owed; rather, Rogers testifies about what might be considered as a resolved dispute generally. In fact, the attorney specifically states that he is "not asking about any specific cases." (Rogers depo, p.62:5.) In fact, the only reference to Defendant's account in the cited portion of Rogers' deposition is where she states that "[t]here were no disputes here." (*Id*. at p.62:2.) Hence, Defendant fails to demonstrate the existence of a triable issue of material fact as to whether Defendant disputed any activity on the account.[2]

---

[2] The Court notes that Plaintiff's Reply brief, signed by Plaintiff's attorney Angela A. Velen, cites several cases that do not appear to exist. The Reply argues "As the Court of Appeal held in ***JPMorgan Chase Bank, N.A. v. Robinson* (2022) 80 Cal.App.5th 592, 600, a custodian 'need not have been present when the records were created' so long as the witness is familiar with the process by which the records are generated and maintained**.'" (Reply brief, p.3:12-16 (emphasis original).) The Reply also states that "In ***Portfolio Recovery Assocs., LLC v. Mejia* (2016) 6 Cal.App.5th 105, 112, the Court of Appeal held that reissuance of an account under a different number does not undermine admissibility or authentication of business records where the debt remains unchanged** and the creditor has provided a proper foundation." (Reply brief, p.6:12-17 (emphasis original).) The Reply also states that a party may not avoid summary judgment by asserting facts based on mere speculation or conjecture, and "Nor can a party 'create a triable issue by attacking the credibility of the moving party's witnesses without providing any countervailing evidence.'" (Reply brief, pp.8:27-9:3, quoting *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 592.)

Regarding this *Union Bank* citation, while the quoted principle is an accurate statement of California law, the quotation is not in this opinion. Rule of Professional Conduct 3.3 mandates that "[a] lawyer shall not . . . knowingly misquote to a tribunal the language of a . . . decision." (Cal. Rules of Prof. Conduct, Rule 3.3, subd.(a)(2).) Likewise, Section 8 of the Santa Clara County Bar Association Code of Professionalism states that "[w]ritten materials submitted to the court should always be factual, concise, accurately state current law, and fairly represent the parties' positions. . . ." (Santa Clara County Bar Association Code of Professionalism, § 8 ("Writings Submitted to the Court"). Regarding the other two cases, these cases do not appear to exist. It might be that these cases are the result of AI hallucinations. (While there might be other explanations, Court cannot imagine any at the moment).

Regarding the Reply's *JPMorgan* citation, there are a number of California cases (as explained above in this Order) that do stand for the same principle argued here. So while the principle of law argued is correct, the specific case cited for this principle of law does not appear to exist. As the principle of law is correct, and as the citation was made in Plaintiff's reply brief, the citation to the nonexistent case does *not* change or affect the outcome of the Court's ruling.

Accordingly, as Defendant fails to meet her burden to demonstrate the existence of any triable issue of material fact, Wells Fargo's Motion for summary judgment is **GRANTED.**

SO ORDERED.

Date: March 4, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Regarding the Reply's *Portfolio Recovery Assocs*. citation, the Court looked but did not find a case that made the precise holding argued here. Nevertheless, as explained above in the Order, the Court independently concluded as a matter of statutory interpretation that the reissuance of a credit card under a different number does not affect the account with the credit card issuer because Civil Code section 1747.02 specifically notes that "an accepted credit card" includes a credit card that is "issued in renewal of, or in substitution for, an accepted credit card." (See Civ. Code § 1747.02, subd. (b).) Thus, citing the nonexistent *Portfolio Recovery Assocs*. case did not change or affect the outcome of the Court's ruling. That said, attorney Velen who signed this Reply brief is admonished for the use of these cases that do not appear to exist and is cautioned that future use of nonexistent cases could result in sanctions against her and her client. *See, e.g., Noland v. Land of the Free, L.P.* (2025) 114 Cal.App.5th 426, 443-449 (imposing monetary sanctions for citing nonexistent opinions).

Line 2

Case Name: *Terry Kwong, et al. v. Elaine Yang, et al.*

Case No.: 24CV445397

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant and Cross-Complainant Elaine Yang ("Yang") moves under Code of Civil Procedure 2031.310 and 2023.030 for an Order:

1. Overruling any objections and compelling further responses to Requests for Production, Set One, Nos. 4-9, 12, 14015, 20-21, 31-33, 35-36, 40-46, propounded to Cross-Defendant Joric Pang ("Pang");

2. Further requiring the Responding Party to conduct a diligent search for responsive documents and submit a declaration documenting those efforts; and

3. Awarding monetary sanctions in the amount of $21,825 against Pang and his counsel of record, Berliner Cohen, LLP.

Motion to Compel at 1:4-13 (the "Motion").

The Motion came on for hearing on March 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff filed this Motion against Joric Pang on November 12, 2025. On reviewing the docket that it appears that Plaintiff on this same date of November 12, 2025, attempted to file two other motions to compel against Lily Pang and Campbell Land Company, LLP, respectively, but that those two other motions were rejected and *not* filed by the Clerk for errors by Yang in failing to make separate reservations for these three separate motions.

Moreover, because the Motions against Lily Pang and Campbell Land Company were rejected, the docket shows that the Clerk also rejected and never filed Plaintiff's:

1. "Omnibus Memorandum of Points and Authorities in Support of Motion to Compel Further Responses for Requests For Production, Set One, From Cross-Defendants (1) ***Joric Pang***, (2) Lily Pang, and (3) Campbell Land Company, L.P., and

2. Omnibus Declaration of Jamie Vogel, Esq., in Support of Motion to Compel Further Responses for Requests For Production, Set One, From Cross-

Defendants (1) ***Joric Pang***, (2) Lily Pang, and (3) Campbell Land Company, L.P., and

3. Separate Statements in Support of Motion to Compel Further Responses for Requests For Production, Set One, From Cross-Defendants (1) ***Joric Pang***, (2) Lily Pang, and (3) Campbell Land Company, L.P.

Accordingly, as no Memorandum of Points and Authorities, no Supporting Declaration, and no Separate Statement in Support of the Motion to compel against Joric Pang has been filed, the Motion fails and is **DENIED without prejudice.**

The Court ever so gently notes that the parties would be wise to resolve these discovery issues themselves.

SO ORDERED.

Date: March 4, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 3

Case Name: *Heriberto Jara Jurado, et al. v. Ford Motor Company, et al.*

Case No.: 24CV447738

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiffs Heriberto Jara Jurado and Edith Albarran Jara ("Plaintiffs") move for an Order to strike Defendant Ford Motor Company's objections and compel further responses to Plaintiffs' Request for Production of Documents, Set One, Request Nos. 1 through 31 (the "RFPs") under Code of Civil Procedure Sections 2031.310 and 2031.320 (the "Motion").

The Motion came on for hearing on March 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

RFPs No. 1 through 14 seek documents relating to Plaintiff's own vehicle (the "Subject Vehicle"). Pl. Memo. of Points & Authorities ISO Motion ("Pl. Memo") at 7:4

RFPs No. 15 through 29 seek documents reflecting Defendant's written warranties and the policies and procedures related to what is covered under those warranties, how coverage id determined, and training related to warranty coverage. Pl. Memo. at 7:8-10.

RFPs No. 30 and 31 seek documents related to Defendant's knowledge of similar defects in other vehicles of the same year, make, and model as the Subject Vehicle. Pl. Memo. at 7:16-17.

To be Code-Compliant, Ford's responses to these RFPs must comply with CCP §§ 2031.210-2031.230 by stating:

> (a) Plaintiff will comply with the RFP—*and* then produce the documents and items requested;
> (b) Plaintiff is unable to comply with the RFP because the requested documents and items have never existed; or
> (c) after diligent search and reasonable inquiry, Plaintiff is are unable to comply because the requested documents and items no longer exist or are no longer in his possession.

C.C.P. §§ 2031.210—2031.230.

To evaluate Plaintiff's core argument that Ford's Responses to RFPs No.1 -31 are "not Code-Compliant" (Pl. Memo. at 1:11-12), the Court has carefully reviewed each and

every one of Ford's Responses—as well as, importantly, Ford's Supplemental Responses to Plaintiff's RFPs No. 15-18, 23, and 30, which Ford was wise to produce better later than never on February 17, 2026. *See* Declaration of Kevin J. Tully ISO Ford's Opposition to Motion to Compel Further Responses to Plaintiffs' RFPs ("Tully Decl.") at ¶ 9 and Exhibit 6 thereto (Ford's Supplemental Responses Plaintiffs' RFPs No. 15-18, 23, and 30.). With these Supplemental Responses, Ford also produced "2,016 additional pages of documents subject to the Court-issued Protective Order—such that an overall total of 2,151 overall have now been produced." Tully Decl. at ¶ 9.

Ford further represents that "in connection with this Opposition" served on February 17, 2026, "Ford is serving supplemental responses to this Requests [No.15-18, 23, and 30] ***agreeing to produce***, subject to the terms of the protective order entered in this case on April 21, 2025, (1) Ford Warranty Policy and procedure Manual; (2) policies and procedures for Ford's Customer Relationship Center ("CRC"), and (3) its RAV Policy and Procedure Manual . . . for the years 2021-2024, which represent the timeframe from when Plaintiffs purchased the subject vehicle in 2021 through the filing of this lawsuit in 2024." Opp. at 1:20-27 (emphasis added).

After reviewing Ford's Responses and Supplemental Responses, the Court rules that they are substantially Code-Complaint under C.C.P. §§ 2031.210 (a)(1) & 2031.220 in that Ford states that it will comply and produce responsive documents subject to its objections. More specifically, in its Responses and Supplemental Responses to RFPs No. 1 and 3-14, 15-18, 23-31, Ford agrees to produce responsive documents subject to its objections. For RFP No. 2, which asks for documents that support Ford's affirmative defenses, Ford identifies such documents.

For No. 19-22, Ford objects, among other reasons, on grounds of privilege—although it is unclear whether Ford has produced a proper privilege log so that Plaintiff can evaluate this claim of privilege. To the extent that Ford has not yet done so, the Court will make Ford produce a privilege log addressing any and all of its claims of privilege and work-product protection in its Responses and Supplemental Responses within 30 days of this Order.

While the Court finds that Ford's Responses and Supplemental Responses are substantially Code-Compliant, the Court shares Plaintiff's concern that while Ford has promised to produce many documents, it is unclear whether it has yet produced *all* the documents that it has promised to produce in its Responses and Supplemental Responses. Indeed, as Plaintiff points out in its Reply papers, Ford's position appears to be inconsistent to the extent that Ford suggests that "it has [already] produced all responsive documentation, ***despite maintaining responses that Ford will comply in part and therefore produce in part***" in the future. The Court will remedy this incongruity by making Ford produce *all* the documents that it has promised to produce in its Responses and Supplemental Responses within 60 days of this Order.

Insofar as the Motion asks the Court to "strike Ford's objections" (Mot. at 1:6-7), that request is denied. Ford, like any party, is permitted under the Code of Civil Procedure

to make objections for the record when responding to discovery requests. However sound or weak these objections may be, there is no good cause for the Court to *strike* them.

Accordingly, the Court **GRANTS IN PART** and **DENIES IN PART** the Motion as follows:

1. **Within 60 days from today**, Ford will produce to Plaintiff *all* responsive documents promised in Ford's Responses and Supplemental Responses to each and every one of these RFPs. In that production, Ford will clearly identify which RFP number(s) that the produced documents are responsive to. This production will be subject to the Protective Order already entered in this case.

2. **Within 60 days from today**, Ford will also produce all documents listed in paragraph 2 of the two Song-Beverely Case Management Addendums attached as Exhibits A & B to Plaintiff's March 5, 2025 meet and confer letter to Ford. Tully Decl. at ¶ 6 and Ex. 1 thereto. This is exactly what For has long promised to do, both in its March 5, 2025 meet and confer letter as well as in its Opposition papers here. *See* Opp. at 1:13-19. This production will be subject to the Protective Order already entered in this case.

   and

3. **Within 30 days from today**, Ford must provide a proper privilege log so that Plaintiff can evaluate any claim of privilege or protection that Ford makes or intends to make over responsive information sought by any of these RFPs, including but not limited to RFPs No. 19-22.

SO ORDERED.

Date: March 4, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 4

Case Name: *Heriberto Jara Jurado, et al. v. Ford Motor Company, et al.*

Case No.: 24CV447738

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiffs Heriberto Jara Jurado and Edith Albarran Jara ("Plaintiffs") move for an Order compelling Defendant Ford Motor Company to provide verified, further responses to Form Interrogatories 12.1, 15.1, and 17.1 under Code of Civil Procedure Section 2030.300 (the "Motion").

The Motion came on for hearing on March 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

The three Form Interrogatories at issue are straightforward:

- 12.1 asks Ford to "state the name, address, and telephone number" of witnesses who saw the incident, made statements about it, heard about it, or know about it.

- 15.1 asks Ford, for each denial of a material allegation and each affirmative defense that Ford made in its own Answer:
    a. State facts on which Ford bases the denial or affirmative defense;
    b. State the Name, address, and telephone numbers of people with knowledge of those facts; and
    c. Identify all documents that support your denials or affirmative defenses.

- 17.1 asks Ford, for each of Plaintiff's Requests For Admission ("RFA") that Ford in its Responses did not admit:

    a. State the number of the RFA;
    b. State the facts on which you base your response;
    c. State the names, address, and telephone numbers of persons with knowledge of those facts; and
    d. Identify documents that support your response.

To be Code-Compliant, Ford's responses to these Form Interrogatories must comply with CCP §§ 2030.210 & 2030.220, including providing answers as complete and straightforward as the information reasonably available to Ford permits.

The Court has carefully reviewed Ford's Responses to Form Interrogatories 12.1, 15.1, and 17.1—as well as, importantly, Ford's Supplemental Responses to Form Interrogatories 12.1, 15.1, and 17.1, which Ford was wise to produce better late than never on February 17, 2026. *See* Declaration of Kevin J. Tully ISO Ford's Opposition to Motion to Compel Further Responses to Plaintiffs' Form Interrogatories at ¶ 9 and Exhibit 5 (Ford's Supplemental Responses Plaintiffs' Form Interrogatories); *see also*, Opposition at 8:3-4 ("Ford has supplementally responded with identifies of the dealership witnesses i[t] has been able to obtain") (citing Tully Decl., ¶ 9, Ex. 5).

The Court finds that Ford's Responses, as Supplemented, to Form Interrogatories 12.1, 15.1, and 17.1 are substantially Code-Compliant. For No. 12,1, Ford identifies multiple potential witnesses, including technicians and employees from dealerships, statements and communications between Ford and individuals contacting Ford regarding the Subject Vehicles, and in its Supplemental Response included the identities of additional dealership witnesses. For No. 15.1, Plaintiff is thus free and able to conduct further discovery including depositions on these identified witnesses to further probe the bases of Ford's denials of material allegations and Ford's affirmative defenses. Ford has also identified multiple documents to support its denials of material allegations and affirmative defenses for No. 15.1 Likewise, for No. 17.1, Ford has now provided facts, persons and documents, supporting Ford's responses to the disputed RFAs.

Now the Court does not doubt for a second that this pending Motion and impending hearing on March 4, 2026 before the undersigned substantially motived Ford to produce its Supplemental Reponses that brought Ford into Code-Compliance here.[3] To that extent, the Motion well served its purpose.

In its Reply papers, Plaintiff does not seriously contest that Ford's Responses *as supplemented* are now Code-Compliant, but rather argues that "Defendant must amend their responses to the FROGs to remove all inapplicable and/or inappropriate objections." Reply at 8:2-4. But given that Ford's Responses are now substantially Code-Compliant, it is neither appropriate nor just for the Court to Order Ford to *waive* its objections now. Whatever their strength or lack thereof, the Code of Civil Procedure allows Ford to proffer its objections for the record.

The one point in this Motion that the Court does agree with Plaintiff and will grant the relief requested now is that to the extent that "Defendant [Ford] maintains that information responsive to a FROG is protected by privilege, the work product doctrine, or any other protection from disclosure, Defendant should abide by the proper procedures of providing a privilege log so that Plaintiff can evaluate such claim of privilege or protection." Reply at 8:3-8. The Court will make Ford do so within 30 days.

Accordingly, the Motion regarding Form Interrogatories 12.1, 15.1, and 17.1 is **GRANTED IN PART and DENIED IN PART** as follows. The Court **ORDERS**:

---

[3] As Plaintiff did not seek monetary sanctions for this Motion, the Court does not reach the issue of whether monetary sanctions would have been appropriate here.

1. As Ford's Responses, as Supplemented, to Form Interrogatories 12.1, 15.1, and 17.1 are now Code-Compliant, Ford need not provide further responses to them; *but*

2. Within 30 days from today, Ford must provide a proper privilege log so that Plaintiff can evaluate any claim of privilege or protection that Ford makes over responsive information sought by Form Interrogatories 12.1, 15.1, and 17.1

SO ORDERED.

Date: March 4, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 5

Case Name: *Sunita Vora v. Sunnyvale Gardens Post Acute, et al.*

Case No.: 25CV464528

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Sunita Vora ("Plaintiff") moves to compel Defendant Manor Care of Sunnyvale CA, LLC ("Defendant") to provide further "objection-free responses" to Requests for Production of Documents, Set One ("RFPs"), and for monetary sanctions in the amount of $3,600.00 for Plaintiff's reasonable attorneys' fees and costs incurred for this motion. Motion at 1:27-2:7 (the "Motion").

The Motion came on for hearing on March 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

This is a straightforward discovery dispute that arose because Defendant on September 2, 2025 served its discovery responses to Plaintiff's RFPs *without* a signed verification to those responses. Def. Memo. of Points & Authorities ISO Motion at 4:12-15 ("Def. Memo.") & Declaration of Donovan Sawyer ISO Motion at ¶ 13 ("Sawyer Decl.") (filed Oct. 8, 2025). After Defendant still did not provide a signed verification for over a month, Plaintiff on October 8, 2025, filed this Motion requesting an Order that:

1. Defendant provide "objection-free responses," i.e., that the Court rule that Defendant by not providing a signed verification on September, 2025 waived all its objections to these RFPs, Motion at 2:3; and

2. "the Court award sanctions in the amount of $3,600.00 against Defendant Sunnyvale or in an amount the Court deems fair and just." Def. Memo. at 7:17-19.

In Opposition, Defendant's argument boils down to this: because Defendant eventually provided its signed verification to its RFP responses on October 13, 2025—within one week after Plaintiff filed this Motion—the Motion is therefore "moot" and should be denied. Opp. at 3:15-16 & Declaration of Alexa Magrath ISO Opposition at ¶ 4.

The Court respectfully disagrees with Defendant that the Motion is moot. It is undisputed that Defendant was required by the Code of Civil Procedure to provide a signed verification with its RFP responses served on September 2, 2025—and that Defendant failed to do so. Therefore, after trying for over a month to get a signed verification from Defendant, Plaintiff was justified in filing this discovery Motion on October 8, 2025. Moreover, the Court finds that the act of Plaintiff filing this Motion on October 8, 2025

was a factor that motivated Defendant to produce the required signed verification less than a week later on October 13, 2025.

The real issue here is not that the Motion is moot, but rather what remedy is just and appropriate given that Plaintiff has now (albeit belatedly) received the exact signed verification that it sought by this Motion.

Regarding the first item of relief sought—to Order waived all Defendant's objections to these RFPs—the Court finds that to be unfair and unduly harsh. While not reaching the merits of any of those objections now, the Court will not force Defendant to waive them. So the Court exercises its broad discretion to relieve Defendant from any waiver of objections under Code of Civil Procedure Section 2031.300(a)(1)-(2). After all, while late, Defendant did subsequently serve its signed verification to these RFPs on October 13, 2026, which Plaintiff is free to use at will in discovery (e.g., in depositions) and at trial. And defense counsel has offered a *plausible* excuse for the delay that because as of "January 31, 2024 [Defendant] had no remaining employees, [that] made it difficult to find someone to verify the responses." Magrath Decl. at ¶ 2.

But regarding monetary sanctions, specifically attorneys' fees and costs incurred to bring this Motion, Plaintiff makes a strong argument that such sanctions are mandatory here under Code of Civil Procedure Section 2031.310. Reply at 9:9-10:9. And as the Court has already ruled above that Plaintiff was justified in bringing this Motion when it did on October 8, 2025, a monetary sanction is appropriate. Yet while an award is mandatory and appropriate, the *amount* of that award of reasonable attorneys' fees and costs incurred for this Motion rests within the broad discretion of this Court.

While Plaintiff requests $3,600.00 as a monetary sanction—specifically, 6 hours of attorney time at counsel's 2025 hourly rate of $600.00 per hour (Sawyer Decl. at ¶ 22)—the Court finds that $3,600.00 is a bit too much here. While the $600.00 hourly rate is reasonable given the relevant market and complexity of the case, it should only take attorney Sawyer four hours (at most) to litigate that Defendant failed to timely provide a signed verification with its RFP responses and was required to do so. Hence, the reasonable amount of attorneys' fees that the Court will award Plaintiff as a sanction here is **$2,400.00** (= 4 hours x $600.00 an hour).

Accordingly, Plaintiff's Motion is GRANTED in part and DENIED in part as follows:

1. Within 30 days from today, Defendant will pay Plaintiff $2,400.00 as a monetary sanction for Plaintiffs' reasonable attorneys' fees and costs incurred for this Motion.

2. Defendant's objections to the RFPs are not waived.

SO ORDERED.

Date: March 4, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 6

Case Name: *Miriam Ben Abdallah, M.D. v. Stephen W. Fackler, et al.*

Case No.: 24CV439631

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Miriam Ben Abdallah, M.D. ("Plaintiff") moves to compel Defendant Aditi Gupta ("Defendant") to provide further responses to: (1) Special Interrogatories, Set One, and (2) Requests for Production of Documents, Set Three (collectively, "Ms. Gupta's discovery responses"), and for monetary sanctions in the amount of $5,888.00 for reasonable attorneys' costs and fees incurred for this motion. Motion at 2:4-15 ("Plaintiff's Motion to Compel").

In a related motion on for hearing today that is inextricably entwined with Plaintiff's Motion to Compel, Defendants Stephen W. Fackler, Madeleine Fackler, Matthew M. Fackler, and Aditi Gupta ("Ms. Gupta" and collectively "Defendants") move for relief from mistake, inadvertence, surprise, or excusable neglect under Code of Civil Procedure Section 473(b) to excuse the inadvertent omission of Ms. Gupta's discovery responses—the same (1) Special Interrogatories, Set One, and (2) Requests for Production of Documents, Set Three, sought by Plaintiff's Motion to Compel—from sets of identical discovery responses by three other defendants timely served on September 30, 2025. Motion at 1:22-2:2 ("Defendants' Motion for Relief").

Plaintiff's Motion to Compel and Defendants' Motion for Relief came on for hearing on March 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On September 30, 2025, Ms. Gupta's discovery responses were due. The next day, on October 1, 2025, Ms. Gupta's lawyer realized that Ms. Gupta's discovery responses were inadvertently omitted from sets of multiple Defendants' responses produced on September 30, 2025. The next day, on October 2, 2025, Ms. Gupta's discovery responses were produced. Declaration of Darya Landa ISO Defendants' Motion for Relief at ¶¶ 4-6. ("Landa Decl.").

Plaintiff has thus filed this Motion to Compel over discovery responses produced two days late.

In Santa Clara County Superior Court, lawyers with discovery disputes *will* "engage in a good faith effort to resolve the issue before filing a motion. In particular, civil discovery motions should be filed sparingly" and "only . . . when the issue cannot be otherwise resolved." Santa Clara County Bar Association Code of Professionalism, Section 11 on Motion Practice; *see* Standing Order Re SCCBA Code of Professionalism (filed March

28, 2023) (authorizing Judges to apply the Code of Professionalism to adjudicate discovery disputes).

By filing this Motion to Compel on October 28, 2025, after the very discovery that the Motion seeks was produced on October 2, 2025—and after Plaintiff's counsel well knew and was told that its omission from the September 30, 2025 production was an oversight; an oversight that was immediately remedied the next *day* on October 2, 2025 by production of Ms. Gupta's discovery responses—Plaintiff and her lawyers have *badly* violated our Code of Professionalism Section 11.

The Court finds that this Motion to Compel was not filed in good faith, and was filed after the dispute had already been resolved. Plaintiff's Motion to Compel is frivolous—totally and completely without merit. C.C.P. § 128.5(b)(2).

Plaintiff's opportunistic move to demand that Ms. Gupta waive all her objections because her responses were inadvertently produced two days late is unworthy of a lawyer who practices in Santa Clara County Superior Court. It is one of the most uncivil, unprofessional, and unjust demands that the undersigned Judge has seen in his career—both on the bench and before when he practiced as a civil litigator in cases across America for over 20 years. It should never have even occurred to a lawyer practicing with civility to pounce and file a discovery motion to "compel" and "strike" objections in discovery inadvertently produced just two days late; dodgy practice; the leaders at your firm should be ashamed that they allowed such sharp practice to occur under their watch.

Lest there be any doubt, the Court rules and finds as a fact that:

- Plaintiff suffered no prejudice whatever by receiving Ms. Gupta's discovery responses two days late.

- Plaintiff's counsel knew before filing this Motion to Compel that Ms. Gupta's responses were inadvertently omitted from a package of sets of discovery responses from multiple defendants produced on September 30, 2025—which even included the verification of Ms. Gupta to her discovery responses. Landa Decl. at ¶ 4.

- Plaintiff received Ms. Gupta's discovery responses two days late on October 2, 2025. *Id.* at ¶ 6.

Accordingly, as **Plaintiff's Motion to Compel** is frivolous and should never have been filed in the first place, it **is DENIED WITH PREJUDICE.**

For the same reasons, **Defendants' Motion for Relief is GRANTED.** In the broad exercise of the Court's discretion to manage discovery disputes, the Court rules that the relief requested is warranted *both* under Section 473(b)—the Landa Declaration does indeed established excusable neglect of counsel in inadvertently producing Ms. Gupta's verified discovery responses two days late—*and* under the Discovery Act provisions of Code of Civil Procedure Sections 2030.290 and 2031.300. Ms. Gupta's discovery responses

were substantially Code-Compliant and the two-day-delay was due to counsel's excusable neglect. Plaintiff's arguments to the contrary are meritless and unfounded.

Regarding sanctions, the Court in the exercise its discretion decides not to impose any—*this time*. The Court will, with a spirit of generosity and liberality, assume that Plaintiff's counsel was blissfully unaware that the Discovery and Motion Practice Sections of the Santa Clara County Bar Association Code of Professionalism are taken seriously and enforced by the undersigned Judge. Now you know. Do better next time.

SO ORDERED.

Date: March 4, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 7

Case Name: *Miriam Ben Abdallah, M.D. v. Stephen W. Fackler, et al.*

Case No.: 24CV439631

[*See* Line **6** above for complete tentative ruling for both Plaintiff's Motion to Compel and Defendants' Motion for Relief regarding the same discovery requests and responses by Ms. Gupta. After the hearing, the Court will prepare and file one formal order addressing both Plaintiff's Motion to Compel and Defendants' Motion for Relief.]

Line 8

Case Name: *Emerging Growth Staffing, LLC v. DFO Global Performance Commerce Limited*

Case No.: 23CV413738

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Emerging Growth Staffing, LLC ("Plaintiff") moves to amend the Judgment entered on May 12, 2025, by correcting Defendant DFO Global Performance Commence Limited's name on the Judgment by simply adding "a Nevada Corporation" after the business name because the Santa Clara County Sheriff cannot execute any post-judgment levies without the full business name for Defendant being listed on the Judgment. Motion at 1:28-2:6 (the "Motion").

The Motion came on for hearing on March 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Under Code of Civil Procedure Sections 187 and 473(d), the Court has the power to amend the May 12, 2025 Judgment to include the full business name of the Defendant. C.C.P. §§ 187, 473(d).

Here, because sheriffs in California are not able to execute post-judgment remedies without the full business entity name of Defendant listed on the Judgment, Plaintiff here specifically asks the Court to amend the Defendant's name currently listed on the May 12, 2025 Judgment as "DFO GLOBAL PERFORMANCE COMMERCE LIMITED" to read "DFO GLOBAL PERFORMANCE COMMERCE LIMITED, A NEVADA CORPORATION." Pl. Memo. of Points & Authorities ISO Motion at 2:4-8 (filed July 3, 2025).

The Court finds the relief requested by Plaintiff to be reasonable and well supported by the governing law and facts of this case.

Moreover, Defendant has not opposed the Motion. Under California Rule of Court 8.54(c): "A failure to oppose a motion may be deemed a consent to the granting of the motion." CRC Rule 8.54(c).

Accordingly, Plaintiff's Motion is **GRANTED**. The Court **ORDERS** that the Defendant's business name as reflected on the Judgment entered May 12, 2025, is hereby corrected and amended to read: "DFO GLOBAL PERFORMANCE COMMERCE LIMITED, A NEVADA CORPORATION."

SO ORDERED.

Date: March 4, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 9

Case Name: *Lynley Kerr Hogan v. Rob Moore, et al.*

Case No.: 25CV456254

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants Rob Moore and Maria Ristow move for attorneys' fees in the amount of $40,950.00 and costs in the amount in $1,060.37, for a total award of fees and costs in the amount of $42,010.37 under Code of Civil Procedure 425.16(c)(1) because Defendants won their Anti-SLAPP motion to strike Plaintiff Lynley Kerr Hogan's Complaint. Motion at 1:25-28 (the "fee Motion").

The fee Motion came on for hearing on March 4, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

As the prevailing party on the Anti-SLAPP motion, Defendants are entitled to an award of their reasonable attorneys' fees and costs incurred for the Anti-SLAPP motion and this fee Motion. C.C.P. § 425.16(c). Both sides agree that Defendants are entitled to *an* award of these reasonable attorneys' fees and costs here. Def. Memo. Points & Authorities ISO Motion at 3:22-23 ("Def. Brief"); Pl. Opp. at 9:19-20. While an award is mandatory here, the *amount* of the award—what *is* a reasonable amount of attorneys' fees and costs incurred here under these particular facts and circumstances—is within the broad discretion of this trial court. *PLCM Group v. Drexler* (2000), 22 Cal. 4th 1084; *Ketchum v. Moses* (2001) 24 Cal. 4th 122.

First, the Court finds that the rate of $375 an hour sought by defense counsel is reasonable and well within market rates in the relevant market of California litigators with similar experience, education, and skill. An hourly billable rate of $375 is also reasonable and commensurate with the level of complexity of the anti-SLAPP motion and fee Motion. So the Court approves and finds the $375 hourly rate sought by defense counsel is reasonable.

Second, the Court agrees with Defendants that there is no hardship exception that authorizes this Court to reduce let alone deny reasonable attorneys' fees and costs under the Anti-SLAPP statutory framework crafted by our Legislature. As Defendants rightfully point out in Reply, the Anti-SLAPP "statute is broadly construed to effectual the purpose of reimbursing prevailing defendants for expenses incurred in extricating themselves from baseless lawsuits." Reply at 4:20-22 (citing *Wilkerson v. Sullivan* (2002) 99 Cal. App. 4th 443, 446). The Legislature well knows how to write and include a hardship exception within the Anti-SLAPP statute—but did not do so. And while appellate courts may have the power to read or imply hardship exceptions into statutory provisions, this trial court will not presume to exercise such a power. Accordingly, the Court respectfully denies Plaintiff's hardship arguments to reduce the amount of the award of Defendants'

reasonable attorneys' fees and costs here that Defendants are entitled to by the plain text of the Anti-SLAPP statute.

Third, the key remaining issue is how many hours the Court finds is reasonable for defense counsel to have spent on this Anti-SLAPP motion and fee Motion. Defense counsel seek recover for 87.2 hours on the Anti-SLAPP Motion here. *See* Declaration of Wendy Motooka ISO Motion at ¶ 16 ("The lodestar amount on my work on the special motion to strike (merits fees) is therefore $375 x (46.2 + 41 [hours]), which amounts to $ 32,700.") ("Motooka Decl."). 46.2 + 41 = 87.2. With great respect to defense counsel, the Court finds it *unreasonable* that defense counsel spent 87.2 hours on this Anti-SLAPP motion. For instance, contrary to what we are told in the Motooka Declaration, it should not have taken dozens and dozens of hours "for further revisions, proofread[ing], and cite check[ing]." Motooka Decl. at ¶ 9. Particularly for strong lawyers with vast experience litigating Anti-SLAPP motions like defense counsel here, the Court finds that the reasonable number of hours to litigate this Anti-SLAPP Motion here was **40 hours.**

Defendants also seek recovery for 22 hours ("9.2+4.8+8") for the amount of work defense counsel spent on this fee Motion. Motooka Decl. at ¶ 20. While the Court agrees with Defendants they are entitled to recover a reasonable amount of attorneys' fees and costs incurred for this fee Motion (the "fees on fees") (Def. Brief at 3:26-27) (citing *569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal. App. 5th 426, 433), the notion that it takes experienced defense counsel 22 hours to litigate *this* fee motion is quite unreasonable. After all, it is undisputed that it is *mandatory* for the prevailing party to recovery attorneys' fees and costs under the Anti-SLAPP statutory framework, so there's not much to argue about on this fee Motion. The only real issue in dispute now is *how much* in attorneys' fees and costs is reasonable—a narrow issue that should not take counsel 22 hours to argue. Hence, the Court finds that **10 hours** is the reasonable number of hours to litigate the fee Motion here.

Accordingly, the Court finds that the reasonable amount attorneys' fees that will be awarded to Defense counsel here is $375 x 50 hours (40 hours for the Anti-SLAPP motion and 10 hours for the fee Motion), which equals **$18,750** for reasonable attorneys' fees which Plaintiff will pay Defendants within 60 days from today.

Regarding Defendants' reasonable *costs* incurred for the Anti-SLAPP motion and fee Motion, Defendants request $1,060.37 for filing fees. Motooka Decl. at ¶ 22. The Court agrees and finds the requested amount of costs of **$1,060.37** sought to be recovered here from Plaintiff is reasonable.

Accordingly, the Motion is **GRANTED** in part as follows. The Court **ORDERS:**

1. Defendants are entitled to recover their reasonable attorneys' fees and costs incurred for the Anti-SLAPP motion and fee Motion.

2. Plaintiff will pay Defendants a total amount of **$19,810.37** (= $18,750 + $1,060.37) within 60 days from today for Defendants' reasonable attorneys' fees and costs incurred for the Anti-SLAPP motion and fee Motion.

SO ORDERED.

Date: March 4, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 10

Line 11

Line 12

Line 13

Line 14

Line 15